



THE EARTHQUAKE RECONSTRUCTION AND REHABILITATION AUTHORITY ACT, 2011



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THE PAKISTAN CODE

THE EARTHQUAKE RECONSTRUCTION AND REHABILITATION AUTHORITY ACT, 2011

ACT No. V OF 2011

[12th March, 2011]

An Act to provide for the establishment of the Earthquake Reconstruction and Rehabilitation Authority (ERRA)

WHEREAS it is expedient to constitute an autonomous organization for post disaster damage assessment, recovery, reconstruction and rehabilitation of the areas affected by the earthquake, and to provide for matters connected therewith or incidental thereto;

It is hereby enacted as under: —

1. Short title, extent and commencement.—(1) This Act may be called the Earthquake Reconstruction and Rehabilitation Authority Act, 2011.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once and shall be deemed to have taken effect on the 1st day of July, 2007.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,

- (a) “affected areas” means areas affected by the earthquake and its aftershocks and notified as such by the Federal Government;
- (b) “Authority” means the Earthquake Reconstruction and Rehabilitation Authority (ERRA);
- (c) “Board” means the Board of the Authority established under section 12;
- (d) “Chairman” means Chairman of the Authority;
- (e) “Council” means the Earthquake Reconstruction and Rehabilitation Council constituted under section 8;
- (f) “Deputy Chairman” means Deputy Chairman of the Authority;
- (g) “ECNEC” means Executive Committee of the National Economic Council;
- (h) “fund” means the fund established under section 15;
- (i) “regulations” means regulations made under this Act; and
- (j) “rules” means rules made under this Act.

3. Establishment of the Earthquake Reconstruction and Rehabilitation Authority.
—(1) Immediately after commencement of this Act, the Federal Government shall, by notification in

the official Gazette, establish the Earthquake Reconstruction and Rehabilitation Authority (ERRA) for carrying out the purposes of this Act.

(2) Subject to the provisions of this Act, the Authority shall be autonomous in its functions and operations and shall be a body corporate having perpetual succession and a common seal, with power to acquire, hold and dispose of property, both moveable and immoveable, and enter into contracts and shall by its name sue and be sued.

(3) For the purpose of coordination, the Authority will be administratively attached with the Prime Minister's Secretariat.

4. Principal office.—The principal office of the Authority shall be in Islamabad and it may establish regional offices at such other place or places as it considers necessary.

5. Functions of Authority.—Subject to the provisions of this Act, the Authority shall be responsible for all reconstruction, rehabilitation and early, recovery programmes and projects in the affected areas and, towards this end, may perform the following functions, namely:

- (a) to conduct surveys to assess damage and carry out future planning in the affected areas;
- (b) to formulate a comprehensive umbrella development program to provide for
 - (i) reconstruction of the government buildings and offices, utilities and services, infrastructure, roads, subways and bridges, potable water, drainage system, health and education facilities, tourism, irrigation and agriculture facilities in the affected areas;
 - (ii) environmental protection and rehabilitation; and
 - (iii) restoration of economic activities and livelihoods;
- (c) to prepare resettlement and rehabilitation plan for the affected population in consultations with the respective Governments of the affected areas;
- (d) to approve projects, programmes and schemes identified, prepared and submitted by the respective Governments of the affected areas;
- (e) to take steps for monitoring and evaluation of the approved projects, programmes and schemes;
- (f) to prescribe cost-effective technology, building codes or construction guidelines, architectural designs, specifications, and construction materials for housing and other buildings in the affected areas to safeguard against future seismic threats.
- (g) To facilitate the establishment of the reconstruction-related industry and business in the affected areas in consultation with the respective Governments;

- (h) To perform such other functions supplemental, incidental or consequential to the purposes and functions aforesaid and any other function assigned to it by the Federal Government in accordance with the purposes of this Act; and
- (i) to keep the two Houses of Majlis-e-Shoora (Parliament) informed of its activities through six monthly reports of its performance for discussion.

6. Powers of the Authority.—To perform its functions, the Authority may—

- (a) undertake any work, incur any expenditure, procure plant, machinery, services, equipment, vehicles and any other moveable and immoveable property, and procure stores required for the implementation of approved development projects, programmes and schemes;
- (b) dispose of such plant, machinery, equipment, vehicles property and stores as are no longer required in the manner as prescribed by rules;
- (c) seek or call for any information from any person or any institution, department or agency, as may be required for carrying out its purposes;
- (d) seek and obtain from any department or agency (including the armed forces) advice and assistance to discharge its functions and for execution of its approved projects, programmes and schemes;
- (e) approve individual projects, programmes and schemes, within the scope of the approved umbrella programme;
- (f) transfer any project on its completion to any department or agency of the Federal Government or respective Governments of the affected areas; and
- (g) re-appropriate funds from one project, programme, scheme etc. to another project, programme or scheme.

7. Management and administration.—(1) The general direction in all matters of policy and administration of the Authority and its affairs shall vest in the Council.

(2) The Council may, by general or special order, delegate to any body or any officer of the Authority to exercise any of its powers, duties or functions under this Act, subject to such conditions as it may deem fit.

8. The Council.—(1) There shall be established the Earthquake Reconstruction and Rehabilitation Council which shall consist of the following members, namely:—

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|-----|--|-------------|
| (a) | Prime Minister of Pakistan | Chairperson |
| (b) | Prime Minister of Azad Jammu and Kashmir | Member |
| (c) | Chief Ministers of Punjab, Khyber Pakhtunkhwa, | |

	Sindh and Balochistan	Members
(d)	Chief Minister, Gilgit-Baltistan	Member
(e)	The Federal Minister for Finance or Advisor to the Prime Minister on Finance as the case may be; and	Member
(f)	Deputy Chairman, Planning Commission	Member
(g)	Chairman of the Authority	Member
(h)	Deputy Chairman of the Authority	Member
(i)	two members each from the National Assembly and the Senate to be nominated by the Speaker and Chairman respectively in consultation with the Leaders of the House and Leaders of the Opposition in the two Houses.	Members

(2) The Council may co-opt such other members as it deems necessary for the conduct of its business.

(3) The Federal Government may, by notification in the official Gazette, increase the membership of the Council.

9. Functions of the Council.—The Council shall provide policy guidelines and approve the policies, plans, programmes, projects and scheme, submitted by the Chairman or the Board.

10. Chairman of the Authority.—(1) The Federal Government shall appoint Chairman of the Authority in accordance with the qualifications and procedure laid down by the Council. The Chairman shall be responsible for the policy matters for such period and such terms and conditions as may be determined by the Council.

(2) The Chairman shall perform such function and carry out such responsibilities as may be delegated to him by the Council or the Board.

11. Deputy Chairman of the Authority.—(1) The Federal Government shall appoint Deputy Chairman for such period and on such terms and conditions as the Council may determine.

(2) The Deputy Chairman shall be responsible for the day-to-day administration of the Authority and may exercise such administrative and financial powers as delegated to him by the Council or the Board.

12. The Board.—(1) There shall be a Board which shall be responsible for the implementation of the approved policy decisions, plans, programmes, projects and schemes and shall have such administrative and financial powers as may be delegated to it by the Council.

(2) The Board shall consist the following members, namely:

(a)	Chairman of the Authority	Chairman
(b)	Deputy Chairman of the Authority	Member
(c)	Additional Finance Secretary	Member

(d)	Additional Secretary Defence	Member
(e)	Additional Secretary Planning Division	Member
(f)	Additional Secretary Economic Affairs Division	Member
(g)	Chief Secretaries of four Provinces and Gilgit-Baltistan	Members
(h)	Chief Secretary AJ&K	Member
(i)	Four representatives of civil society to be nominated by the Federal Government	Members
(j)	A representative of civil society to be nominated by the Government of an affected Area.	Member

(3) The Deputy Chairman of the Authority shall also act as Secretary of the Board.

(4) The Board may co-opt such other members as are deemed necessary for the conduct of its business.

(5) The terms and conditions of the non-official members and their privileges will be such as may be determined by the Council.

(6) The Federal Government may, by notification in the official Gazette, increase or decrease the membership of the Board and for that matter amend sub-section (2) so as to add any entry thereto or modify or omit any entry therein.

13. Powers and functions of the Board. — (1) The Board shall exercise such powers and perform such functions as the Council may assign to it.

(2) Subject to the provision of sub-section (1) and subject to the overall supervision and control of the Council, the Board shall perform the following functions, namely:—

- (a) approve projects upto one billion rupees and any project beyond that limit shall be submitted to ECNEC for approval;
- (b) approve the budget and accounts;
- (c) consider the quarterly and annual reports of the Authority for making recommendations to the Council;
- (d) appoint advisors and consultants and determine their conditions of appointment; and
- (e) constitute such committees as it may consider appropriate.

14. Meetings. —(1) Meetings of the Council and of the Board shall be held at such time, place and in such manner as may be specified.

(2) The Council shall meet once in three months or as often as the Chairman of the Council may direct.

(3) The Board shall meet as often as is expedient to discharge its responsibilities and shall prescribe procedure for regulating its proceedings.

(4) The decisions of the Council and of the Board shall be taken by the majority of members present and, in the event of a tie, the Chairperson or, as the case may be the Chairman shall have a casting vote.

15. ERRA Fund.—(1) There shall be established a fund for reconstruction and rehabilitation to be known as the ERRA Fund which shall vest in and be utilized by the Authority to meet the expenses and carry out the objectives of this Act.

(2) The Fund shall consist of—

- (a) such sums as the Federal Government may, from time to time, allocate to it; and
- (b) all other sums or properties which may in any manner become payable to, or vest in, Authority

16. Annual budget.—The Authority shall prepare its annual budget for each financial year, to be considered by the Board, for submission to the Council for final approval.

17. Accounts.—The Authority shall maintain complete and accurate books of accounts and shall, after the end of each financial year, prepare for the financial year a statement of accounts of the Authority in such form as may be prescribed by the Controller General of Accounts for submission to the Federal Government.

18. Audit.—(1) The accounts of the Authority shall be audited annually by the Auditor General of Pakistan.

(2) The Authority, in addition to the audit by the Auditor General, may cause its accounts to be audited by internal auditors and arrange for third party validation of the projects on need basis.

19. Exemption from taxes.—Notwithstanding anything contained in the Income Tax Ordinance, 2001 (XLIX of 2001), or in other law for the time being in force relating to income-tax, capital gains- tax, the Authority shall not be liable to pay and shall be exempted from paying any such taxes as aforesaid on its incomes, profits or gains.

20. Appointment of officers, etc.—(1) The Board may, from time to time, appoint such officers, employees, experts and consultants as it may consider necessary for the performance of its functions.

(2) The Board shall, prescribe by regulations the procedure for appointment of its officers, employees, experts and consultants and the terms and conditions of their service.

21. Recovery of dues.—Any sum due to the Authority shall be recoverable as arrears of land revenue.

22. Validity of proceedings.—No act, decision or proceedings of the Authority or its Council or Board shall be invalid by reason only of the existence of a vacancy in, or defect in the constitution of, the Authority or its Council or Board.

23. Indemnity.—No suit, prosecution or other legal proceedings shall lie against the Authority, the Council, the Board, the Chairperson, the Chairman, or any member, officer, servant, advisor, consultant or expert of the Authority, for anything done in good faith under this Act.

24. Officers etc., to be public servant.—Every officer, employee expert and consultant of the Authority shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code, 1860 (Act XLV of 1860).

25. Ordinance XCI of 2002 not to apply to the Authority.—Nothing contained in the Industrial Relations Ordinance, 2002 (XCI of 2002), shall apply to, or in relation to, the Authority or its establishments or in its officers or employees.

26. Winding up of the Authority.—No provision of any law relating to winding up of bodies corporate shall apply to the Authority and the Authority shall not be wound up except through resolution passed by both Houses of *Majlis-e- Shoora* (Parliament).

27. Powers to make rules.—The Council may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

28. Powers to make regulations.—The Board may make regulations not inconsistent with this Act and the rules made thereunder, to provide for all matters for which provision is necessary or expedient for carrying out the purposes of this Act.

29. Removal of difficulties.—If any difficulty arises in giving effect to any of the provisions of this Act, the Federal Government may make such order, not inconsistent with the provisions of this Act as may appear to be necessary, for the purpose of removing the difficulty.

30. Power of the Federal Government to issue directives.—The Federal Government may, as and when it considers necessary, issue directives to the Authority on matters of policy, and such directives shall be binding on the Authority and if a question arises whether any matter is a matter of policy or not, the decision of the Federal Government shall be final.

31. Act to override other laws.—The provisions of this Act shall have effect notwithstanding anything inconsistent contained in any other law for the time being in force and any such law, rule or regulation shall, to the extent of any inconsistency, cease to have effect from the date this Act comes into force.

32. Repeal and savings.—Upon the commencement of this Act—

- (a) the Prime Minister's Secretariat's Notification No. F.1(4)/2005-Admin, dated 24th October, 2005, shall stand rescinded;
- (b) all funds, properties, rights and interests of whatsoever kind issued, used, enjoyed, possessed or owned, vested in the Earthquake Reconstruction and Rehabilitation Authority (ERRA) in existence before such commencement

and of liabilities legally subsisting against the said Authority shall pass to the Authority established under this Act; and

- (c) all employees, advisors, consultants and experts appointed by the Authority in existence before the commencement of this Act shall become employees, advisors, consultants and experts of the Authority established under this Act.



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